

Disability Advocacy NSW

A guide to our services



Information about how
we work with you



Speaking up for fairness.

Disability Advocacy NSW supports people with disability to get a fair go. We stand beside people with disability to help them know their rights, sort out issues, and be fully included in the community.

Who do we help?

Our service is for people with any type of disability, including people living with mental illness.

How can we help you?

We provide individual advocacy support services to people with disability across two-thirds of NSW. These services can help you sort out a range of issues if you are being treated unfairly.

Our services include different types of support, such as one-on-one assistance or guidance to take on issues and advocate for yourself wherever possible. We'll work with you to make sure you get the right type of support depending on your personal situation and needs.



About our services



What issues do we help with?

We can help you understand your rights and get fair treatment with:

- > government services and programs like Centrelink and the National Disability Insurance Scheme (NDIS)
- > disability services
- > other services and businesses
- > workplaces
- > schools, universities and TAFEs
- > accommodation
- > transport and access
- > legal, healthcare and money issues.

Where are our services available?

Our individual advocacy support services are available in the areas shown in the map below.



Map key

- Regions serviced
- Advocate locations:

- | | |
|------------------|--------------------|
| 1. Armidale | 9. Newcastle |
| 2. Ballina | 10. Parramatta |
| 3. Bathurst | 11. Port Macquarie |
| 4. Broken Hill | 12. Tamworth |
| 5. Coffs Harbour | 13. Taree |
| 6. Dubbo | 14. Singleton |
| 7. Glen Innes | 15. Valley Heights |
| 8. Gosford | |

What can't we help with?

There are some things that are not covered by our services, but we will always do our best to point you towards someone else who can assist if we are unable. We will tell you why if we cannot help with a particular issue.

Our services do not include:

- **legal advice** – we are a non-legal advocacy service. We may be able to help by referring you to a legal service such as a community legal centre or legal aid
- **casework services** – we are unable to provide support to address multiple issues at once, or help with applying for or managing services
- **advocacy services when other advocacy supports are available** – if you have a support person that can reasonably advocate for you, without a conflict of interest, we cannot provide individual advocacy. We can provide resources, information and advice for you to work through with your support person to sort out your issue
- **advocacy services when a more appropriate service is available** – if there is a service more suited to your issue, we will help by referring you to this service
- **advocacy services in some situations involving an apprehended personal violence order (APVO)** – we are unable to assist unless mediation has been attempted to sort out the issue, and you have tried to get assistance from other agencies that can help (such as a court support scheme).

How much do our services cost?

Nothing – they are free.



How our services work

What will happen?

We will work with you to understand the issue and what kind of help you might need from our service. This may be information and resources to help you resolve the issue and self-advocate, or some one-on-one support from an advocate.

If we are providing one-on-one support, your advocate will work with you in partnership to sort out the issue. First, your advocate will talk to you about the issue, what has happened so far, and what result you are looking for. Your advocate will then give you some feedback about any problems that may be stopping you from making progress, and possible actions you could take to get a fair go. This might involve things like making a complaint, asking for a review, or working through a decision about what to do next.

Our focus will be on helping you build and use your skills and knowledge to take on the issue, so you have the best chance of getting a fair outcome.

What can you do?

If we are providing one-on-one support, we will work with you to identify the actions you can take and those your advocate can take to progress the issue.

We will support you to advocate for yourself wherever possible, as we believe that building these skills will help set you up to sort out other issues that may occur in the future.

Who will work with you?

Our team of advocates is made up of people from many different backgrounds, including some with a disability, Aboriginal and Torres Strait Islanders, and people who speak languages other than English. All our advocates have relevant qualifications, skills and experience working in advocacy.

Are our advocacy services independent?

We work as independently from other service providers and government as possible. For every case, we check that an advocate's interests will not interfere with their advocacy work. If we identify any possible conflicts of interest we have procedures to deal with this openly and transparently. Our advocates also cannot accept gifts or payments from people they are supporting with advocacy services.

Who will we assist first when many people are asking for advocacy help?

We do everything we can to meet people's needs with the resources we have. For one-on-one support, we try to help people who need it the most first. We do this by looking at the issue, important dates coming up, and the impact of the issue on the person. If none of our advocates are available to assist at the time, we will give an idea of how long it might be before we can assist. We can also provide self-help tools that can support you with information and options to resolve common issues, stand up for your rights, and get a fair go.

When might advocacy services need to stop?

Advocacy support will stop once the agreed service is provided or if there is a different service that will better meet your needs. We will discuss this with you and can help with a referral.

We will also stop support if you threaten or scare staff, or if our involvement is doing harm to you or our organisation. We have limited resources and must ensure everyone's safety while providing the best service we can.

Your rights and responsibilities



Your rights

1. To be treated with fairness and respect
2. To make your own decisions about the advocacy support services you receive
3. To be fully informed in a way you can understand
4. To have your personal information protected and not shared without your permission
5. To feel safe about complaining if you are not satisfied with your advocate
6. To work with an advocate who is independent from disability service providers and free of conflict



Your responsibilities

1. To treat your advocate with respect
2. To understand that advocates try to do what you ask for but cannot do things that are illegal or may cause harm to you or others
3. To tell your advocate everything you know about your issue
4. To let us know in a reasonable time if you need to change or cancel an appointment
5. To make sure your home is safe if your advocate is visiting
6. To understand that due to limited resources, advocates must help people who need it the most first
7. To actively work with your advocate and complete any tasks where possible that will help progress the issue



Your personal information

How do we keep and use your information?

We keep basic personal information, along with other information about your situation. We record the results you are hoping for and take notes on what we have been doing to sort out your issue. We do this to keep track of how we are going in getting the outcome you want. From this information, we also put together reports to show that we are doing our job. These reports do not identify individuals, so your personal details will never be shared.

How long do we keep your information?

We will keep your file on our system for seven (7) years. After seven years, your file may be destroyed and we are not required to provide you with a copy of your file.

Can you see your file?

You are welcome to see or get a copy of your file any time while we are working with you, or for seven years after – just contact us and ask.

How is information kept safe?

When not in use, your file is kept in a secure cabinet and computer system. Our computers have strong security passwords.

Who has access to your information?

The only people who can look at your file are the people who work at Disability Advocacy NSW and are assisting with your case. If we need to talk to other people about your case, we will ask for your permission first. The exceptions to this are:

- in some cases a law court may order us to provide information in a file
- if we need to report any information we know about a child whose safety is at risk, as per the law
- in an emergency situation where there is a serious risk to a person's life, health or safety, or threat to public health or safety
- independent people (standards auditors), who have signed an agreement not to tell anyone about information in your file, may look at some files to make sure we are providing you with a good quality service. You can sign a note to say you do not want your file to be included in audits if you wish.



If we need to talk to other people about your case, we will ask for your permission first.

Our commitment to quality

How is the quality of our services checked?

Our services must comply with the *National Standards for Disability Services*. To make sure we do, independent auditors and peer assessors regularly check we are meeting these standards. They do this by talking to staff and clients, and also checking files to make sure our advocates are doing a good job. You can choose if you want your file checked in this way. Your advocate will give you a consent form to document your decision, and once signed your choice will be recorded on your file.

What can you do if you are unhappy with our services?

If you are not happy with any part of our services you have the right to tell us and we will respond. We welcome any feedback – positive or negative – because it helps us provide better services. Your complaint will be handled fairly and will not affect your advocacy matter or access to our service.

How can you make a complaint or give feedback?

You can complain or give feedback at any time in a way that suits you:

- **Talk** to your advocate or person you have the problem with. When you do this you can bring a friend, family member, carer or someone you trust
- **Write** to us at:
Suite 1, Level 2, Devonshire House
408 King Street
Newcastle West NSW 2302
- **Call** us on **1300 365 085**
- **Email** us at **da@da.org.au**
- **Fill out** a contact form on our website at **da.org.au**.

If you believe your complaint is particularly serious you can call a service who is independent of us – the Complaints Resolution and Referral Service – on **1800 880 052**.



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Get involved

How can you support our work in the wider community?

We help create society-wide change to make systems and communities more fair, respectful and inclusive for people with disability. We do this through community education work and other initiatives to help shape positive long-term change. Our systemic advocacy advisory board (SAAB) also steers and guides this work.

To find out more and see how you can be involved, visit our website at da.org.au.

More information

For our detailed policies or to find out more about our services, please get in touch.

Call: **1300 365 085**

Email: da@da.org.au

Visit: da.org.au

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